

8	25-01452596 <i>Joseph Construction vs. Kenney</i>	Motion for Summary Judgment and/or Adjudication OFF CALENDAR
9	22-01292736 <i>Martin vs. The Stag Bar, Inc.</i>	Motion to Compel Production Defendant The Stag Bar, Inc.’s Motion to Compel Compliance or Terminating Sanctions is GRANTED in part as to the request for terminating sanctions. Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559.) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiff was ordered to provide responses to Defendant’s Requests for Production, set two, on January 22, 2026 within 20 days and without objections. Plaintiff served responses with objections and without producing any documents on February 19, 2026. (Deng Decl., Ex. C.) Thus, her responses were late, failed to comply with the Court’s order, and importantly failed to attach the responsive documents. Defendant has contacted Plaintiff numerous times to request the responsive documents and Plaintiff has repeated failed to produce them despite promising to do so for over four months. Further, Plaintiff failed to comply with the required pretrial filings which would have included producing her updated medical records when the trial was pending on April 13, 2026. Thus, Plaintiff has demonstrated she is unwilling to comply with her discovery obligations even when ordered by this Court or when trial is pending in less than a week. Therefore, the Court finds Plaintiff’s violation is willful and less severe sanctions in the Court’s previous order were ineffective. Accordingly, terminating sanctions are appropriate.
10	25-01504866 <i>Martinez vs. Saravia</i>	Motion to Strike To the extent that the motion of defendants Edith Martinez and Sandra Rojas to strike the punitive damages request in the complaint of Edith Martinez and Sandra Rojas is not MOOT, it is DENIED for failure to comply with CRC 3.1322(a). <u>Discussion.</u> Per the notice of motion, defendants Braulio Saravia and Maria L. Saravia “move the Court to strike the punitive damages request in the Complaint filed by Plaintiffs EDITH MARTINEZ and SANDRA ROJAS.”

		Defendants have failed to specify exactly what they want stricken from the complaint, as required under subdivision (a) of CRC 3.1322. That subdivision states: A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively. The Court cannot grant the relief requested because it does not know specifically what defendants want it to strike. Furthermore, plaintiffs filed a first amended complaint on October 2, 2025, which means that it is the operative pleading in the action and that the (initial) complaint has been superseded. Thus, to the extent that defendants are seeking to strike portions of the complaint – as opposed to the first amended complaint – as stated in the notice of motion, the motion is moot.
11	25-01460537 <i>Palomino vs. FCA US, LLC</i>	Motion to Compel Production Plaintiff Eduardo Palomino’s Motion to Compel Further Compliance with Code of Civil Procedure section 871.26 is CONTINUED to _. Defendant produced numerous documents in response to its initial disclosure obligations. Plaintiff seeks additional documents he claims are responsive but were not produced. Plaintiff has failed to show any attempts to meet and confer prior to filing its Motion. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephonic, or videoconference meeting of counsel, no later than 30 calendar days prior to the continued hearing date. If Defendant agrees to serve supplemental responses, Defendant shall serve supplemental verified responses and produce additional documents no later than 20 calendar days prior to the continued hearing date. Plaintiffs’ counsel shall file and serve a supplemental declaration, no later than 9 court days before the continued hearing date and not to exceed five pages, including: (1) a description of the parties’ additional attempts to meet and confer; (2) attaching a copy of Defendant’s supplemental responses, if any; and (3) a concise description of any remaining dispute including identification of the specific requests which remain in dispute. Defendant’s counsel may file a responsive supplemental declaration, not to exceed three pages, no later than 5 calendar days before the continued hearing date.